BEFORE THE DISTRICT CONSUMER DISPUTES REDRESSAL COMMISSION OF COIMBATORE

E.A.No.42 of 2024

C.C.No.452 of 2010

S. Pavithra - Petitioner/Complaint

-Vs-

1. Nava Chakra Finance

2. P. Murugesan - Respondents/Opposite party

COUNTER STATEMENT FILED BY 2ND RESPONDENT

1. The petition is false, frivolous and unsustainable in law and on facts of the case.

2. The petitioner is put to strict proof of all the allegations except those that are specifically admitted herein.

3. The averments that this respondent is liable to pay the outstanding as mentioned in the execution petition and thereby the petitioner at present filed the present execution petition for attachment of property which belongs to this respondent etc., are stoutly and categorically denied as false.

4. The averments that the petition filed before this Hon'ble commission at the earliest was dismissed and as against which she preferred appeal before Hon'ble State Commission which was allowed as early on 17.07.2014 and at present this petition is filed for its execution nearly after 10 years etc are not admitted by this respondent as correct.

5. This respondent submits that this Hon'ble commission has no jurisdiction to execute the award passed by the Hon'ble State Commission since financial transaction does not come within the purview of The Consumer Protection Act as per present settled position of law. As such this petition is liable to be dismissed for want of jurisdiction as well filed in wrong provision of law.

6. This respondent further submits that already this issue was subject matter of civil suits that is pending between both parties and after a period of 10 long years, this

execution petition is filed which is purely barred by limitation.

7. Without prejudice, this respondent submits that the petitioner and her family members are tenant under him in the premises bearing D.No.850B Part, Rangae Gounder Street, Coimbatore and there were also civil suits pending at that time and in the meanwhile, the petitioner after getting the awards from the State Commission agreed to get the property under his occupation in lieu of the award amount in above appeals. Since the petitioner agreed to get the premises under his occupation as tenant by getting it registered and thereby to adjust the award amount, the respondent herein did not proceed further with all his earlier suits and let it on dismissal for default. Thus, with such understanding, the petitioner and respondent both kept quiet for all these years. Besides, this respondent never ever received any rent from her for the past 10 years. Thus, the petitioner having enjoyed the benefits now all of a sudden filed this execution petition. This respondent submits that he is not liable to pay any sum to petitioner. So also, the valuable property of this respondent is under occupation of petitioner as tenant which she agreed to get it registered his favour. However, by suppressing all, these the present petition is filed and thereby, the petitioner is estopped from filing this petition. This respondent more particularly submits that he did not proceed with the suit in OS No.5/2009, OS No.644/2009 and RCOP No.274/2009 in view of the aforesaid arrangement that took place between them. However, now by suppressing all these at present, this Execution Petition is filed which is against the agreed term. This respondent hereby reserves a right to file a detailed counter statement by collecting necessary documents from the Hon'ble State Commission and also details of the proceedings that were pending for a long time between both parties. Hence, without prejudice to the same, this counter is filed by reserving right to put forth further contentions by denying the claim of petitioner herein. Furthermore, the petitioner herein does not come under the ambit of consumer with regards to the dispute herein.

Therefore, it is prayed that this Hon'ble court may be pleased to dismiss the petition with costs and render justice.

ADVOCATE FOR 2ndRESPONDENT **2ndRESPONDENT**

VERIFICATION

I, the 2nd respondent above named do hereby declare that the facts stated above are true and correct to the best of my knowledge and I signed the same at Coimbatore on

2ndRESPONDENT

BEFORE THE DISTRICT CONSUMER DISPUTES REDRESSAL COMMISSION OF COIMBATORE

E.A.No.42 of 2024

C.C.No.452 of 2010

S. Pavithra
- Petitioner/Complaint

-Vs-

1. Nava Chakra Finance

2. P. Murugesan
- Respondents/Opposite party

COUNTER STATEMENT FILED BY 2ND RESPONDENT

Pre On : 11.03.2025

ADDRESS FOR SERVICE:

S.Chandrasekaran, M.A., B.L., DLL., (MS.595/1986)
C.Jaiy Chandhar, B.A., LLB., (Hons) (MS.1658/2020)
Advocates
85/12, 3rd Floor, Cherran Apartments,
Govt.Arts College Road,
Coimbatore – 641 018.
Off: 0422-2200337

BEFORE THE DISTRICT COUSUMER DISPUTES REDRESSAL COMMISSION
COLLECTRATE CAMPUS, COIMBATORE – 641 018

E.A.No. 43 OF 2024
in
C.C.No. 453 OF2010

S.Girija (deceased) & 3 others - Petitioner/Complainant

-Vs-

P. Murugesan - Respondent No.2/Opposite Party No.2

COUNTER STATEMENT FILED BY 2ND RESPONDENT

1. The petition is false, frivolous and unsustainable in law and on facts of the case.

2. The petitioner is put to strict proof of all the allegations except those that are specifically admitted herein.

3. The averments that this respondent is liable to pay the outstanding as mentioned in the execution petition and thereby the petitioner at present filed the present execution petition for attachment of property which belongs to this respondent etc., are stoutly and categorically denied as false.

4. The averments that the petition filed before this Hon'ble commission at the earliest was dismissed and as against which she preferred appeal before Hon'ble State Commission which was allowed as early on 17.07.2014 and at present this petition is filed for its execution nearly after 10 years etc are not admitted by this respondent as correct.

5. This respondent submits that this Hon'ble commission has no jurisdiction to execute the award passed by the Hon'ble State Commission since financial transaction does not come within the purview of The Consumer Protection Act as per present settled position of law. As such this petition is liable to be dismissed for want of jurisdiction.

6. This respondent further submits that already this issue was subject matter of civil suits that is pending between both parties and after a period of 10 long years, this

execution petition is filed which is purely barred by limitation.

7. Without prejudice, this respondent submits that the petitioner and her family members are tenant under him in the premises bearing D.No.850B Part, Rangae Gounder Street, Coimbatore and there were also civil suits pending at that time and in the meanwhile, the petitioner after getting the awards from the State Commission agreed to get the property under his occupation in lieu of the award amount in above appeals. Since the petitioner agreed to get the premises under his occupation as tenant by getting it registered and thereby to adjust the award amount, the respondent herein did not proceed further with all his earlier suits and let it on dismissal for default. Thus, with such understanding, the petitioner and respondent both kept quiet for all these years. Besides, this respondent never ever received any rent from her for the past 10 years. Thus, the petitioner having enjoyed the benefits now all of a sudden filed this execution petition. This respondent submits that he is not liable to pay any sum to petitioner. So also, the valuable property of this respondent is under occupation of petitioner as tenant which she agreed to get it registered his favour. However, by suppressing all, these the present petition is filed and thereby, the petitioner is estopped from filing this petition. This respondent more particularly submits that he did not proceed with the suit in OS No.5/2009, OS No.644/2009 and RCOP No.274/2009 in view of the aforesaid arrangement that took place between them. However, now by suppressing all these at present, this Execution Petition is filed which is against the agreed term. This respondent hereby reserves a right to file a detailed counter statement by collecting necessary documents from the Hon'ble State Commission and also details of the proceedings that were pending for a long time between both parties. Hence, without prejudice to the same, this counter is filed by reserving right to put forth further contentions by denying the claim of petitioner herein. Furthermore, the petitioner herein does not come under the ambit of consumer with regards to the dispute herein.

Therefore, it is prayed that this Hon'ble court may be pleased to dismiss the petition with costs and render justice.

ADVOCATE FOR 2ndRESPONDENT **2ndRESPONDENT**

VERIFICATION

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2nd RESPONDENT

BEFORE THE DISTRICT COUSUMER DISPUTES REDRESSAL COMMISSION COIMBATORE

E.A.No. 43 OF 2024
in
C.C.No. 453 OF2010

S.Girija (deceased) & 3 others
- Petitioner/Complainant

-Vs-

P. Murugesan
- Respondent No.2/Opposite Party No.2

COUNTER STATEMENT FILED BY 2ND RESPONDENT

Pre On : 11.03.2025

ADDRESS FOR SERVICE:

S.Chandrasekaran, M.A., B.L., DLL., (MS.595/1986)
C.Jaiy Chandhar, B.A., LLB., (Hons) (MS.1658/2020)
Advocates
85/12, 3rd Floor, Cherran Apartments,
Govt.Arts College Road,
Coimbatore – 641 018.
Off: 0422-2200337

BEFORE THE DISTRICT COUSUMER DISPUTES REDRESSAL COMMISSION COIMBATORE

E.A.No.44 OF 2024
in
C.C.No. 454 OF2010

S.Girija (deceased) & 3 others - Petitioner/Complainant

-Vs-

P. Murugesan - Respondent No.2/Opposite Party No.2

COUNTER STATEMENT FILED BY 2ND RESPONDENT

1. The petition is false, frivolous and unsustainable in law and on facts of the case.

2. The petitioner is put to strict proof of all the allegations except those that are specifically admitted herein.

3. The averments that this respondent is liable to pay the outstanding as mentioned in the execution petition and thereby the petitioner at present filed the present execution petition for attachment of property which belongs to this respondent etc., are stoutly and categorically denied as false.

4. The averments that the petition filed before this Hon'ble commission at the earliest was dismissed and as against which she preferred appeal before Hon'ble State Commission which was allowed as early on 17.07.2014 and at present this petition is filed for its execution nearly after 10 years etc are not admitted by this respondent as correct.

5. This respondent submits that this Hon'ble commission has no jurisdiction to execute the award passed by the Hon'ble State Commission since financial transaction does not come within the purview of The Consumer Protection Act as per present settled position of law. As such this petition is liable to be dismissed for want of jurisdiction.

6. This respondent further submits that already this issue was subject matter of civil suits that is pending between both parties and after a period of 10 long years, this

execution petition is filed which is purely barred by limitation.

7. Without prejudice, this respondent submits that the petitioner and her family members are tenant under him in the premises bearing D.No.850B Part, Rangae Gounder Street, Coimbatore and there were also civil suits pending at that time and in the meanwhile, the petitioner after getting the awards from the State Commission agreed to get the property under his occupation in lieu of the award amount in above appeals. Since the petitioner agreed to get the premises under his occupation as tenant by getting it registered and thereby to adjust the award amount, the respondent herein did not proceed further with all his earlier suits and let it on dismissal for default. Thus, with such understanding, the petitioner and respondent both kept quiet for all these years. Besides, this respondent never ever received any rent from her for the past 10 years. Thus, the petitioner having enjoyed the benefits now all of a sudden filed this execution petition. This respondent submits that he is not liable to pay any sum to petitioner. So also, the valuable property of this respondent is under occupation of petitioner as tenant which she agreed to get it registered his favour. However, by suppressing all, these the present petition is filed and thereby, the petitioner is estopped from filing this petition. This respondent more particularly submits that he did not proceed with the suit in OS No.5/2009, OS No.644/2009 and RCOP No.274/2009 in view of the aforesaid arrangement that took place between them. However, now by suppressing all these at present, this Execution Petition is filed which is against the agreed term. This respondent hereby reserves a right to file a detailed counter statement by collecting necessary documents from the Hon'ble State Commission and also details of the proceedings that were pending for a long time between both parties. Hence, without prejudice to the same, this counter is filed by reserving right to put forth further contentions by denying the claim of petitioner herein. Furthermore, the petitioner herein does not come under the ambit of consumer with regards to the dispute herein.

Therefore, it is prayed that this Hon'ble court may be pleased to dismiss the petition with costs and render justice.

ADVOCATE FOR 2ndRESPONDENT **2ndRESPONDENT**

VERIFICATION

I, the 2nd respondent above named do hereby declare that the facts stated above are true and correct to the best of my knowledge and I signed the same at Coimbatore on

2ndRESPONDENT

BEFORE THE DISTRICT COUSUMER DISPUTES REDRESSAL COMMISSION COIMBATORE

E.A.No.44 OF2024
in
C.C.No. 454 OF2010

S.Girija (deceased) & 3 others
- Petitioner/Complainant

-Vs-

P. Murugesan
- Respondent No.2/Opposite Party No.2

COUNTER STATEMENT FILED BY 2ND RESPONDENT

Pre On : 11.03.2025

ADDRESS FOR SERVICE:

S.Chandrasekaran, M.A., B.L., DLL., (MS.595/1986)
C.Jaiy Chandhar, B.A., LLB., (Hons) (MS.1658/2020)
Advocates
85/12, 3rd Floor, Cherran Apartments,
Govt.Arts College Road,
Coimbatore – 641 018.
Off: 0422-2200337

BEFORE THE DISTRICT COUSUMER DISPUTES REDRESSAL COMMISSION

COIMBATORE

E.A.No.45 OF2024
in
C.C.No. 455 OF2010

S.Girija (deceased) & 3 others - Petitioner/Complainant

-Vs-

P. Murugesan - Respondent No.2/Opposite Party No.2

COUNTER STATEMENT FILED BY 2ND RESPONDENT

1. The petition is false, frivolous and unsustainable in law and on facts of the case.

2. The petitioner is put to strict proof of all the allegations except those that are specifically admitted herein.

3. The averments that this respondent is liable to pay the outstanding as mentioned in the execution petition and thereby the petitioner at present filed the present execution petition for attachment of property which belongs to this respondent etc., are stoutly and categorically denied as false.

4. The averments that the petition filed before this Hon'ble commission at the earliest was dismissed and as against which she preferred appeal before Hon'ble State Commission which was allowed as early on 17.07.2014 and at present this petition is filed for its execution nearly after 10 years etc are not admitted by this respondent as correct.

5. This respondent submits that this Hon'ble commission has no jurisdiction to execute the award passed by the Hon'ble State Commission since financial transaction does not come within the purview of The Consumer Protection Act as per present settled position of law. As such this petition is liable to be dismissed for want of jurisdiction.

6. This respondent further submits that already this issue was subject matter of civil suits that is pending between both parties and after a period of 10 long years, this

execution petition is filed which is purely barred by limitation.

7. Without prejudice, this respondent submits that the petitioner and her family members are tenant under him in the premises bearing D.No.850B Part, Rangae Gounder Street, Coimbatore and there were also civil suits pending at that time and in the meanwhile, the petitioner after getting the awards from the State Commission agreed to get the property under his occupation in lieu of the award amount in above appeals. Since the petitioner agreed to get the premises under his occupation as tenant by getting it registered and thereby to adjust the award amount, the respondent herein did not proceed further with all his earlier suits and let it on dismissal for default. Thus, with such understanding, the petitioner and respondent both kept quiet for all these years. Besides, this respondent never ever received any rent from her for the past 10 years. Thus, the petitioner having enjoyed the benefits now all of a sudden filed this execution petition. This respondent submits that he is not liable to pay any sum to petitioner. So also, the valuable property of this respondent is under occupation of petitioner as tenant which she agreed to get it registered his favour. However, by suppressing all, these the present petition is filed and thereby, the petitioner is estopped from filing this petition. This respondent more particularly submits that he did not proceed with the suit in OS No.5/2009, OS No.644/2009 and RCOP No.274/2009 in view of the aforesaid arrangement that took place between them. However, now by suppressing all these at present, this Execution Petition is filed which is against the agreed term. This respondent hereby reserves a right to file a detailed counter statement by collecting necessary documents from the Hon'ble State Commission and also details of the proceedings that were pending for a long time between both parties. Hence, without prejudice to the same, this counter is filed by reserving right to put forth further contentions by denying the claim of petitioner herein. Furthermore, the petitioner herein does not come under the ambit of consumer with regards to the dispute herein.

Therefore, it is prayed that this Hon'ble court may be pleased to dismiss the petition with costs and render justice.

ADVOCATE FOR 2ndRESPONDENT **2ndRESPONDENT**

VERIFICATION

I, the 2nd respondent above named do hereby declare that the facts stated above are true and correct to the best of my knowledge and I signed the same at Coimbatore on

2nd RESPONDENT

BEFORE THE DISTRICT COUSUMER DISPUTES REDRESSAL COMMISSION COIMBATORE

E.A.No.45 OF2024
in
C.C.No. 455 OF2010

S.Girija (deceased) & 3 others
- Petitioner/Complainant
-Vs-

P. Murugesan - Respondent No.2/Opposite Party No.2

COUNTER STATEMENT FILED BY 2ND RESPONDENT

Pre On : 11.03.2025

ADDRESS FOR SERVICE:

S.Chandrasekaran, M.A., B.L., DLL., (MS.595/1986)
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Off: 0422-2200337

BEFORE THE DISTRICT COUSUMER DISPUTES REDRESSAL COMMISSION

COIMBATORE

E.A.No.46 OF2024
in
C.C.No.456 OF 2010

S.Girija (deceased) & 3 others - Petitioner/Complainant

-Vs-

P. Murugesan - Respondent No.2/Opposite Party No.2

COUNTER STATEMENT FILED BY 2ND RESPONDENT

1. The petition is false, frivolous and unsustainable in law and on facts of the case.

2. The petitioner is put to strict proof of all the allegations except those that are specifically admitted herein.

3. The averments that this respondent is liable to pay the outstanding as mentioned in the execution petition and thereby the petitioner at present filed the present execution petition for attachment of property which belongs to this respondent etc., are stoutly and categorically denied as false.

4. The averments that the petition filed before this Hon'ble commission at the earliest was dismissed and as against which she preferred appeal before Hon'ble State Commission which was allowed as early on 17.07.2014 and at present this petition is filed for its execution nearly after 10 years etc are not admitted by this respondent as correct.

5. This respondent submits that this Hon'ble commission has no jurisdiction to execute the award passed by the Hon'ble State Commission since financial transaction does not come within the purview of The Consumer Protection Act as per present settled position of law. As such this petition is liable to be dismissed for want of jurisdiction.

6. This respondent further submits that already this issue was subject matter of civil suits that is pending between both parties and after a period of 10 long years, this

execution petition is filed which is purely barred by limitation.

7. Without prejudice, this respondent submits that the petitioner and her family members are tenant under him in the premises bearing D.No.850B Part, Rangae Gounder Street, Coimbatore and there were also civil suits pending at that time and in the meanwhile, the petitioner after getting the awards from the State Commission agreed to get the property under his occupation in lieu of the award amount in above appeals. Since the petitioner agreed to get the premises under his occupation as tenant by getting it registered and thereby to adjust the award amount, the respondent herein did not proceed further with all his earlier suits and let it on dismissal for default. Thus, with such understanding, the petitioner and respondent both kept quiet for all these years. Besides, this respondent never ever received any rent from her for the past 10 years. Thus, the petitioner having enjoyed the benefits now all of a sudden filed this execution petition. This respondent submits that he is not liable to pay any sum to petitioner. So also, the valuable property of this respondent is under occupation of petitioner as tenant which she agreed to get it registered his favour. However, by suppressing all, these the present petition is filed and thereby, the petitioner is estopped from filing this petition. This respondent more particularly submits that he did not proceed with the suit in OS No.5/2009, OS No.644/2009 and RCOP No.274/2009 in view of the aforesaid arrangement that took place between them. However, now by suppressing all these at present, this Execution Petition is filed which is against the agreed term. This respondent hereby reserves a right to file a detailed counter statement by collecting necessary documents from the Hon'ble State Commission and also details of the proceedings that were pending for a long time between both parties. Hence, without prejudice to the same, this counter is filed by reserving right to put forth further contentions by denying the claim of petitioner herein. Furthermore, the petitioner herein does not come under the ambit of consumer with regards to the dispute herein.

Therefore, it is prayed that this Hon'ble court may be pleased to dismiss the petition with costs and render justice.

ADVOCATE FOR 2ndRESPONDENT **2ndRESPONDENT**

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2nd RESPONDENT

BEFORE THE DISTRICT COUSUMER DISPUTES REDRESSAL COMMISSION COIMBATORE

E.A.No.46 OF2024
in
C.C.No.456 OF 2010

S.Girija (deceased) & 3 others
- Petitioner/Complainant

-Vs-

P. Murugesan
- Respondent No.2/Opposite Party No.2

COUNTER STATEMENT FILED BY 2ND RESPONDENT

Pre On : 11.03.2025

ADDRESS FOR SERVICE:

S.Chandrasekaran, M.A., B.L., DLL., (MS.595/1986)
C.Jaiy Chandhar, B.A., LLB., (Hons) (MS.1658/2020)
Advocates
85/12, 3rd Floor, Cherran Apartments,
Govt.Arts College Road,
Coimbatore – 641 018.
Off: 0422-2200337

BEFORE THE DISTRICT COUSUMER DISPUTES REDRESSAL COMMISSION

COIMBATORE

E.A.No.47 OF2024
in
C.C.No.457 OF2010

S.Pavithra - Petitioner/Complainant

-Vs-

P. Murugesan - Respondent No.2/Opposite Party No.2

COUNTER STATEMENT FILED BY 2ND RESPONDENT

1. The petition is false, frivolous and unsustainable in law and on facts of the case.

2. The petitioner is put to strict proof of all the allegations except those that are specifically admitted herein.

3. The averments that this respondent is liable to pay the outstanding as mentioned in the execution petition and thereby the petitioner at present filed the present execution petition for attachment of property which belongs to this respondent etc., are stoutly and categorically denied as false.

4. The averments that the petition filed before this Hon'ble commission at the earliest was dismissed and as against which she preferred appeal before Hon'ble State Commission which was allowed as early on 17.07.2014 and at present this petition is filed for its execution nearly after 10 years etc are not admitted by this respondent as correct.

5. This respondent submits that this Hon'ble commission has no jurisdiction to execute the award passed by the Hon'ble State Commission since financial transaction does not come within the purview of The Consumer Protection Act as per present settled position of law. As such this petition is liable to be dismissed for want of jurisdiction.

6. This respondent further submits that already this issue was subject matter of civil suits that is pending between both parties and after a period of 10 long years, this

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7. Without prejudice, this respondent submits that the petitioner and her family members are tenant under him in the premises bearing D.No.850B Part, Rangae Gounder Street, Coimbatore and there were also civil suits pending at that time and in the meanwhile, the petitioner after getting the awards from the State Commission agreed to get the property under his occupation in lieu of the award amount in above appeals. Since the petitioner agreed to get the premises under his occupation as tenant by getting it registered and thereby to adjust the award amount, the respondent herein did not proceed further with all his earlier suits and let it on dismissal for default. Thus, with such understanding, the petitioner and respondent both kept quiet for all these years. Besides, this respondent never ever received any rent from her for the past 10 years. Thus, the petitioner having enjoyed the benefits now all of a sudden filed this execution petition. This respondent submits that he is not liable to pay any sum to petitioner. So also, the valuable property of this respondent is under occupation of petitioner as tenant which she agreed to get it registered his favour. However, by suppressing all, these the present petition is filed and thereby, the petitioner is estopped from filing this petition. This respondent more particularly submits that he did not proceed with the suit in OS No.5/2009, OS No.644/2009 and RCOP No.274/2009 in view of the aforesaid arrangement that took place between them. However, now by suppressing all these at present, this Execution Petition is filed which is against the agreed term. This respondent hereby reserves a right to file a detailed counter statement by collecting necessary documents from the Hon'ble State Commission and also details of the proceedings that were pending for a long time between both parties. Hence, without prejudice to the same, this counter is filed by reserving right to put forth further contentions by denying the claim of petitioner herein. Furthermore, the petitioner herein does not come under the ambit of consumer with regards to the dispute herein.

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2nd RESPONDENT

BEFORE THE DISTRICT COUSUMER DISPUTES REDRESSAL COMMISSION COIMBATORE

E.A.No.47 OF2024
in
C.C.No.457 OF2010

S.Pavithra
- Petitioner/Complainant

-Vs-

P. Murugesan
- Respondent No.2/Opposite Party No.2

COUNTER STATEMENT FILED BY 2ND RESPONDENT

Pre On : 11.03.2025

ADDRESS FOR SERVICE:

S.Chandrasekaran, M.A., B.L., DLL., (MS.595/1986)
C.Jaiy Chandhar, B.A., LLB., (Hons) (MS.1658/2020)
Advocates
85/12, 3rd Floor, Cherran Apartments,
Govt.Arts College Road,
Coimbatore – 641 018.
Off: 0422-2200337

BEFORE THE DISTRICT COUSUMER DISPUTES REDRESSAL COMMISSION COIMBATORE

E.A.No.48 OF2024
in
C.C.No.458 OF2010

S.Pavithra - Petitioner/Complainant

-Vs-

P. Murugesan - Respondent No.2/Opposite Party No.2

COUNTER STATEMENT FILED BY 2ND RESPONDENT

1. The petition is false, frivolous and unsustainable in law and on facts of the case.

2. The petitioner is put to strict proof of all the allegations except those that are specifically admitted herein.

3. The averments that this respondent is liable to pay the outstanding as mentioned in the execution petition and thereby the petitioner at present filed the present execution petition for attachment of property which belongs to this respondent etc., are stoutly and categorically denied as false.

4. The averments that the petition filed before this Hon'ble commission at the earliest was dismissed and as against which she preferred appeal before Hon'ble State Commission which was allowed as early on 17.07.2014 and at present this petition is filed for its execution nearly after 10 years etc are not admitted by this respondent as correct.

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7. Without prejudice, this respondent submits that the petitioner and her family members are tenant under him in the premises bearing D.No.850B Part, Rangae Gounder Street, Coimbatore and there were also civil suits pending at that time and in the meanwhile, the petitioner after getting the awards from the State Commission agreed to get the property under his occupation in lieu of the award amount in above appeals. Since the petitioner agreed to get the premises under his occupation as tenant by getting it registered and thereby to adjust the award amount, the respondent herein did not proceed further with all his earlier suits and let it on dismissal for default. Thus, with such understanding, the petitioner and respondent both kept quiet for all these years. Besides, this respondent never ever received any rent from her for the past 10 years. Thus, the petitioner having enjoyed the benefits now all of a sudden filed this execution petition. This respondent submits that he is not liable to pay any sum to petitioner. So also, the valuable property of this respondent is under occupation of petitioner as tenant which she agreed to get it registered his favour. However, by suppressing all, these the present petition is filed and thereby, the petitioner is estopped from filing this petition. This respondent more particularly submits that he did not proceed with the suit in OS No.5/2009, OS No.644/2009 and RCOP No.274/2009 in view of the aforesaid arrangement that took place between them. However, now by suppressing all these at present, this Execution Petition is filed which is against the agreed term. This respondent hereby reserves a right to file a detailed counter statement by collecting necessary documents from the Hon'ble State Commission and also details of the proceedings that were pending for a long time between both parties. Hence, without prejudice to the same, this counter is filed by reserving right to put forth further contentions by denying the claim of petitioner herein. Furthermore, the petitioner herein does not come under the ambit of consumer with regards to the dispute herein.

Therefore, it is prayed that this Hon'ble court may be pleased to dismiss the petition with costs and render justice.

ADVOCATE FOR 2ndRESPONDENT **2ndRESPONDENT**

VERIFICATION

I, the 2nd respondent above named do hereby declare that the facts stated above are true and correct to the best of my knowledge and I signed the same at Coimbatore on

2nd RESPONDENT

BEFORE THE DISTRICT CONSUMER DISPUTES REDRESSAL COMMISSION OF COIMBATORE

E.A.No.48 OF2024
in
C.C.No.458 OF2010

S.Pavithra
- Petitioner/Complainant

-Vs-

P. Murugesan
- Respondent No.2/Opposite Party No.2

COUNTER STATEMENT FILED BY 2ND RESPONDENT

Pre On : 11.03.2025

ADDRESS FOR SERVICE:

S.Chandrasekaran, M.A., B.L., DLL., (MS.595/1986)
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Advocates
85/12, 3rd Floor, Cherran Apartments,
Govt.Arts College Road,
Coimbatore – 641 018.
Off: 0422-2200337

BEFORE THE DISTRICT COUSUMER DISPUTES REDRESSAL COMMISSION COIMBATORE

E.A.No.49 OF2024
in
C.C.No.459 OF2010

S.Pradeep - Petitioner/Complainant

-Vs-

P. Murugesan - Respondent No.2/Opposite Party No.2

COUNTER STATEMENT FILED BY 2ND RESPONDENT

1. The petition is false, frivolous and unsustainable in law and on facts of the case.

2. The petitioner is put to strict proof of all the allegations except those that are specifically admitted herein.

3. The averments that this respondent is liable to pay the outstanding as mentioned in the execution petition and thereby the petitioner at present filed the present execution petition for attachment of property which belongs to this respondent etc., are stoutly and categorically denied as false.

4. The averments that the petition filed before this Hon'ble commission at the earliest was dismissed and as against which she preferred appeal before Hon'ble State Commission which was allowed as early on 17.07.2014 and at present this petition is filed for its execution nearly after 10 years etc are not admitted by this respondent as correct.

5. This respondent submits that this Hon'ble commission has no jurisdiction to execute the award passed by the Hon'ble State Commission since financial transaction does not come within the purview of The Consumer Protection Act as per present settled position of law. As such this petition is liable to be dismissed for want of jurisdiction.

6. This respondent further submits that already this issue was subject matter of civil suits that is pending between both parties and after a period of 10 long years, this

execution petition is filed which is purely barred by limitation.

7. Without prejudice, this respondent submits that the petitioner and her family members are tenant under him in the premises bearing D.No.850B Part, Rangae Gounder Street, Coimbatore and there were also civil suits pending at that time and in the meanwhile, the petitioner after getting the awards from the State Commission agreed to get the property under his occupation in lieu of the award amount in above appeals. Since the petitioner agreed to get the premises under his occupation as tenant by getting it registered and thereby to adjust the award amount, the respondent herein did not proceed further with all his earlier suits and let it on dismissal for default. Thus, with such understanding, the petitioner and respondent both kept quiet for all these years. Besides, this respondent never ever received any rent from her for the past 10 years. Thus, the petitioner having enjoyed the benefits now all of a sudden filed this execution petition. This respondent submits that he is not liable to pay any sum to petitioner. So also, the valuable property of this respondent is under occupation of petitioner as tenant which she agreed to get it registered his favour. However, by suppressing all, these the present petition is filed and thereby, the petitioner is estopped from filing this petition. This respondent more particularly submits that he did not proceed with the suit in OS No.5/2009, OS No.644/2009 and RCOP No.274/2009 in view of the aforesaid arrangement that took place between them. However, now by suppressing all these at present, this Execution Petition is filed which is against the agreed term. This respondent hereby reserves a right to file a detailed counter statement by collecting necessary documents from the Hon'ble State Commission and also details of the proceedings that were pending for a long time between both parties. Hence, without prejudice to the same, this counter is filed by reserving right to put forth further contentions by denying the claim of petitioner herein. Furthermore, the petitioner herein does not come under the ambit of consumer with regards to the dispute herein.

Therefore, it is prayed that this Hon'ble court may be pleased to dismiss the petition with costs and render justice.

ADVOCATE FOR 2ndRESPONDENT **2ndRESPONDENT**

VERIFICATION

I, the 2nd respondent above named do hereby declare that the facts stated above are true and correct to the best of my knowledge and I signed the same at Coimbatore on

2nd RESPONDENT

BEFORE THE DISTRICT CONSUMER DISPUTES REDRESSAL COMMISSION OF COIMBATORE

E.A.No.49 OF2024
in
C.C.No.459 OF2010

S.Pradeep - Petitioner/Complainant

-Vs-

P. Murugesan - Respondent No.2/Opposite Party No.2

COUNTER STATEMENT FILED BY 2ND RESPONDENT

Pre On : 11.03.2025

ADDRESS FOR SERVICE:

S.Chandrasekaran, M.A., B.L., DLL., (MS.595/1986)
C.Jaiy Chandhar, B.A., LLB., (Hons) (MS.1658/2020)
Advocates
85/12, 3rd Floor, Cherran Apartments,
Govt.Arts College Road,
Coimbatore – 641 018.
Off: 0422-2200337

BEFORE THE DISTRICT COUSUMER DISPUTES REDRESSAL COMMISSION COIMBATORE

E.A.No.50 OF2024
in
C.C.No. 460 OF2010

S.Pradeep - Petitioner/Complainant

-Vs-

P. Murugesan - Respondent No.2/Opposite Party No.2

COUNTER STATEMENT FILED BY 2ND RESPONDENT

1. The petition is false, frivolous and unsustainable in law and on facts of the case.

2. The petitioner is put to strict proof of all the allegations except those that are specifically admitted herein.

3. The averments that this respondent is liable to pay the outstanding as mentioned in the execution petition and thereby the petitioner at present filed the present execution petition for attachment of property which belongs to this respondent etc., are stoutly and categorically denied as false.

4. The averments that the petition filed before this Hon'ble commission at the earliest was dismissed and as against which she preferred appeal before Hon'ble State Commission which was allowed as early on 17.07.2014 and at present this petition is filed for its execution nearly after 10 years etc are not admitted by this respondent as correct.

5. This respondent submits that this Hon'ble commission has no jurisdiction to execute the award passed by the Hon'ble State Commission since financial transaction does not come within the purview of The Consumer Protection Act as per present settled position of law. As such this petition is liable to be dismissed for want of jurisdiction.

6. This respondent further submits that already this issue was subject matter of civil suits that is pending between both parties and after a period of 10 long years, this

execution petition is filed which is purely barred by limitation.

7. Without prejudice, this respondent submits that the petitioner and her family members are tenant under him in the premises bearing D.No.850B Part, Rangae Gounder Street, Coimbatore and there were also civil suits pending at that time and in the meanwhile, the petitioner after getting the awards from the State Commission agreed to get the property under his occupation in lieu of the award amount in above appeals. Since the petitioner agreed to get the premises under his occupation as tenant by getting it registered and thereby to adjust the award amount, the respondent herein did not proceed further with all his earlier suits and let it on dismissal for default. Thus, with such understanding, the petitioner and respondent both kept quiet for all these years. Besides, this respondent never ever received any rent from her for the past 10 years. Thus, the petitioner having enjoyed the benefits now all of a sudden filed this execution petition. This respondent submits that he is not liable to pay any sum to petitioner. So also, the valuable property of this respondent is under occupation of petitioner as tenant which she agreed to get it registered his favour. However, by suppressing all, these the present petition is filed and thereby, the petitioner is estopped from filing this petition. This respondent more particularly submits that he did not proceed with the suit in OS No.5/2009, OS No.644/2009 and RCOP No.274/2009 in view of the aforesaid arrangement that took place between them. However, now by suppressing all these at present, this Execution Petition is filed which is against the agreed term. This respondent hereby reserves a right to file a detailed counter statement by collecting necessary documents from the Hon'ble State Commission and also details of the proceedings that were pending for a long time between both parties. Hence, without prejudice to the same, this counter is filed by reserving right to put forth further contentions by denying the claim of petitioner herein. Furthermore, the petitioner herein does not come under the ambit of consumer with regards to the dispute herein.

Therefore, it is prayed that this Hon'ble court may be pleased to dismiss the petition with costs and render justice.

ADVOCATE FOR 2ndRESPONDENT **2ndRESPONDENT**

VERIFICATION

I, the 2nd respondent above named do hereby declare that the facts stated above are true and correct to the best of my knowledge and I signed the same at Coimbatore on

2nd RESPONDENT

BEFORE THE DISTRICT CONSUMER DISPUTES REDRESSAL COMMISSION OF COIMBATORE

E.A.No.50 OF2024
in
C.C.No. 460 OF2010

S.Pradeep
- Petitioner/Complainant

-Vs-

P. Murugesan
- Respondent No.2/Opposite Party No.2

COUNTER STATEMENT FILED BY 2ND RESPONDENT

Pre On : 11.03.2025

ADDRESS FOR SERVICE:

S.Chandrasekaran, M.A., B.L., DLL., (MS.595/1986)
C.Jaiy Chandhar, B.A., LLB., (Hons) (MS.1658/2020)
Advocates
85/12, 3rd Floor, Cherran Apartments,
Govt.Arts College Road,
Coimbatore – 641 018.
Off: 0422-2200337

BEFORE THE DISTRICT COUSUMER DISPUTES REDRESSAL COMMISSION COIMBATORE

E.A.No.51 OF2024
in
C.C.No.464 OF2010

P. Sathyanarayanan - Petitioner/Complainant

-Vs-

P. Murugesan - Respondent No.2/Opposite Party No.2

COUNTER STATEMENT FILED BY 2ND RESPONDENT

1. The petition is false, frivolous and unsustainable in law and on facts of the case.

2. The petitioner is put to strict proof of all the allegations except those that are specifically admitted herein.

3. The averments that this respondent is liable to pay the outstanding as mentioned in the execution petition and thereby the petitioner at present filed the present execution petition for attachment of property which belongs to this respondent etc., are stoutly and categorically denied as false.

4. The averments that the petition filed before this Hon'ble commission at the earliest was dismissed and as against which she preferred appeal before Hon'ble State Commission which was allowed as early on 17.07.2014 and at present this petition is filed for its execution nearly after 10 years etc are not admitted by this respondent as correct.

5. This respondent submits that this Hon'ble commission has no jurisdiction to execute the award passed by the Hon'ble State Commission since financial transaction does not come within the purview of The Consumer Protection Act as per present settled position of law. As such this petition is liable to be dismissed for want of jurisdiction.

6. This respondent further submits that already this issue was subject matter of civil suits that is pending between both parties and after a period of 10 long years, this

execution petition is filed which is purely barred by limitation.

7. Without prejudice, this respondent submits that the petitioner and her family members are tenant under him in the premises bearing D.No.850B Part, Rangae Gounder Street, Coimbatore and there were also civil suits pending at that time and in the meanwhile, the petitioner after getting the awards from the State Commission agreed to get the property under his occupation in lieu of the award amount in above appeals. Since the petitioner agreed to get the premises under his occupation as tenant by getting it registered and thereby to adjust the award amount, the respondent herein did not proceed further with all his earlier suits and let it on dismissal for default. Thus, with such understanding, the petitioner and respondent both kept quiet for all these years. Besides, this respondent never ever received any rent from her for the past 10 years. Thus, the petitioner having enjoyed the benefits now all of a sudden filed this execution petition. This respondent submits that he is not liable to pay any sum to petitioner. So also, the valuable property of this respondent is under occupation of petitioner as tenant which she agreed to get it registered his favour. However, by suppressing all, these the present petition is filed and thereby, the petitioner is estopped from filing this petition. This respondent more particularly submits that he did not proceed with the suit in OS No.5/2009, OS No.644/2009 and RCOP No.274/2009 in view of the aforesaid arrangement that took place between them. However, now by suppressing all these at present, this Execution Petition is filed which is against the agreed term. This respondent hereby reserves a right to file a detailed counter statement by collecting necessary documents from the Hon'ble State Commission and also details of the proceedings that were pending for a long time between both parties. Hence, without prejudice to the same, this counter is filed by reserving right to put forth further contentions by denying the claim of petitioner herein. Furthermore, the petitioner herein does not come under the ambit of consumer with regards to the dispute herein.

Therefore, it is prayed that this Hon'ble court may be pleased to dismiss the petition with costs and render justice.

ADVOCATE FOR 2ndRESPONDENT **2ndRESPONDENT**

VERIFICATION

I, the 2nd respondent above named do hereby declare that the facts stated above are true and correct to the best of my knowledge and I signed the same at Coimbatore on

2nd RESPONDENT

BEFORE THE DISTRICT CONSUMER DISPUTES REDRESSAL COMMISSION OF COIMBATORE

E.A.No.51 OF2024
in
C.C.No.464 OF2010

P. Sathyanarayanan
- Petitioner/Complainant

-Vs-

P. Murugesan
- Respondent No.2/Opposite Party No.2

COUNTER STATEMENT FILED BY 2ND RESPONDENT

Pre On : 11.03.2025

ADDRESS FOR SERVICE:

S.Chandrasekaran, M.A., B.L., DLL., (MS.595/1986)
C.Jaiy Chandhar, B.A., LLB., (Hons) (MS.1658/2020)
Advocates
85/12, 3rd Floor, Cherran Apartments,
Govt.Arts College Road,
Coimbatore – 641 018.
Off: 0422-2200337

BEFORE THE DISTRICT COUSUMER DISPUTES REDRESSAL COMMISSION COIMBATORE

E.A.No.52 OF2024
in
C.C.No.462 OF2010

P. Sathyanarayanan - Petitioner/Complainant

-Vs-

P. Murugesan - Respondent No.2/Opposite Party No.2

COUNTER STATEMENT FILED BY 2ND RESPONDENT

1. The petition is false, frivolous and unsustainable in law and on facts of the case.

2. The petitioner is put to strict proof of all the allegations except those that are specifically admitted herein.

3. The averments that this respondent is liable to pay the outstanding as mentioned in the execution petition and thereby the petitioner at present filed the present execution petition for attachment of property which belongs to this respondent etc., are stoutly and categorically denied as false.

4. The averments that the petition filed before this Hon'ble commission at the earliest was dismissed and as against which she preferred appeal before Hon'ble State Commission which was allowed as early on 17.07.2014 and at present this petition is filed for its execution nearly after 10 years etc are not admitted by this respondent as correct.

5. This respondent submits that this Hon'ble commission has no jurisdiction to execute the award passed by the Hon'ble State Commission since financial transaction does not come within the purview of The Consumer Protection Act as per present settled position of law. As such this petition is liable to be dismissed for want of jurisdiction.

6. This respondent further submits that already this issue was subject matter of civil suits that is pending between both parties and after a period of 10 long years, this

execution petition is filed which is purely barred by limitation.

7. Without prejudice, this respondent submits that the petitioner and her family members are tenant under him in the premises bearing D.No.850B Part, Rangae Gounder Street, Coimbatore and there were also civil suits pending at that time and in the meanwhile, the petitioner after getting the awards from the State Commission agreed to get the property under his occupation in lieu of the award amount in above appeals. Since the petitioner agreed to get the premises under his occupation as tenant by getting it registered and thereby to adjust the award amount, the respondent herein did not proceed further with all his earlier suits and let it on dismissal for default. Thus, with such understanding, the petitioner and respondent both kept quiet for all these years. Besides, this respondent never ever received any rent from her for the past 10 years. Thus, the petitioner having enjoyed the benefits now all of a sudden filed this execution petition. This respondent submits that he is not liable to pay any sum to petitioner. So also, the valuable property of this respondent is under occupation of petitioner as tenant which she agreed to get it registered his favour. However, by suppressing all, these the present petition is filed and thereby, the petitioner is estopped from filing this petition. This respondent more particularly submits that he did not proceed with the suit in OS No.5/2009, OS No.644/2009 and RCOP No.274/2009 in view of the aforesaid arrangement that took place between them. However, now by suppressing all these at present, this Execution Petition is filed which is against the agreed term. This respondent hereby reserves a right to file a detailed counter statement by collecting necessary documents from the Hon'ble State Commission and also details of the proceedings that were pending for a long time between both parties. Hence, without prejudice to the same, this counter is filed by reserving right to put forth further contentions by denying the claim of petitioner herein. Furthermore, the petitioner herein does not come under the ambit of consumer with regards to the dispute herein.

Therefore, it is prayed that this Hon'ble court may be pleased to dismiss the petition with costs and render justice.

ADVOCATE FOR 2ndRESPONDENT **2ndRESPONDENT**

VERIFICATION

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2nd RESPONDENT

BEFORE THE DISTRICT CONSUMER DISPUTES REDRESSAL COMMISSION OF COIMBATORE

E.A.No.52 OF2024
in
C.C.No.462 OF2010

P. Sathyanarayanan - Petitioner/Complainant

-Vs-

P. Murugesan - Respondent No.2/Opposite Party No.2

COUNTER STATEMENT FILED BY 2ND RESPONDENT

Pre On : 11.03.2025

ADDRESS FOR SERVICE:

S.Chandrasekaran, M.A., B.L., DLL., (MS.595/1986)
C.Jaiy Chandhar, B.A., LLB., (Hons) (MS.1658/2020)
Advocates
85/12, 3rd Floor, Cherran Apartments,
Govt.Arts College Road,
Coimbatore – 641 018.
Off: 0422-2200337

BEFORE THE DISTRICT COUSUMER DISPUTES REDRESSAL COMMISSION COIMBATORE

E.A.No.53 OF2024
in
C.C.No.463 OF2010

P. Sathyanarayanan - Petitioner/Complainant

-Vs-

P. Murugesan - Respondent No.2/Opposite Party No.2

COUNTER STATEMENT FILED BY 2ND RESPONDENT

1. The petition is false, frivolous and unsustainable in law and on facts of the case.

2. The petitioner is put to strict proof of all the allegations except those that are specifically admitted herein.

3. The averments that this respondent is liable to pay the outstanding as mentioned in the execution petition and thereby the petitioner at present filed the present execution petition for attachment of property which belongs to this respondent etc., are stoutly and categorically denied as false.

4. The averments that the petition filed before this Hon'ble commission at the earliest was dismissed and as against which she preferred appeal before Hon'ble State Commission which was allowed as early on 17.07.2014 and at present this petition is filed for its execution nearly after 10 years etc are not admitted by this respondent as correct.

5. This respondent submits that this Hon'ble commission has no jurisdiction to execute the award passed by the Hon'ble State Commission since financial transaction does not come within the purview of The Consumer Protection Act as per present settled position of law. As such this petition is liable to be dismissed for want of jurisdiction.

6. This respondent further submits that already this issue was subject matter of civil suits that is pending between both parties and after a period of 10 long years, this

execution petition is filed which is purely barred by limitation.

7. Without prejudice, this respondent submits that the petitioner and her family members are tenant under him in the premises bearing D.No.850B Part, Rangae Gounder Street, Coimbatore and there were also civil suits pending at that time and in the meanwhile, the petitioner after getting the awards from the State Commission agreed to get the property under his occupation in lieu of the award amount in above appeals. Since the petitioner agreed to get the premises under his occupation as tenant by getting it registered and thereby to adjust the award amount, the respondent herein did not proceed further with all his earlier suits and let it on dismissal for default. Thus, with such understanding, the petitioner and respondent both kept quiet for all these years. Besides, this respondent never ever received any rent from her for the past 10 years. Thus, the petitioner having enjoyed the benefits now all of a sudden filed this execution petition. This respondent submits that he is not liable to pay any sum to petitioner. So also, the valuable property of this respondent is under occupation of petitioner as tenant which she agreed to get it registered his favour. However, by suppressing all, these the present petition is filed and thereby, the petitioner is estopped from filing this petition. This respondent more particularly submits that he did not proceed with the suit in OS No.5/2009, OS No.644/2009 and RCOP No.274/2009 in view of the aforesaid arrangement that took place between them. However, now by suppressing all these at present, this Execution Petition is filed which is against the agreed term. This respondent hereby reserves a right to file a detailed counter statement by collecting necessary documents from the Hon'ble State Commission and also details of the proceedings that were pending for a long time between both parties. Hence, without prejudice to the same, this counter is filed by reserving right to put forth further contentions by denying the claim of petitioner herein. Furthermore, the petitioner herein does not come under the ambit of consumer with regards to the dispute herein.

Therefore, it is prayed that this Hon'ble court may be pleased to dismiss the petition with costs and render justice.

ADVOCATE FOR 2ndRESPONDENT **2ndRESPONDENT**

VERIFICATION

I, the 2nd respondent above named do hereby declare that the facts stated above are true and correct to the best of my knowledge and I signed the same at Coimbatore on

2nd RESPONDENT

BEFORE THE DISTRICT CONSUMER DISPUTES REDRESSAL COMMISSION OF COIMBATORE

E.A.No.53 OF2024
in
C.C.No.463 OF2010

P. Sathyanarayanan - Petitioner/Complainant

-Vs-

P. Murugesan - Respondent No.2/Opposite Party No.2

COUNTER STATEMENT FILED BY 2ND RESPONDENT

Pre On : 11.03.2025

ADDRESS FOR SERVICE:

S.Chandrasekaran, M.A., B.L., DLL., (MS.595/1986)
C.Jaiy Chandhar, B.A., LLB., (Hons) (MS.1658/2020)
Advocates
85/12, 3rd Floor, Cherran Apartments,
Govt.Arts College Road,
Coimbatore – 641 018.
Off: 0422-2200337

BEFORE THE DISTRICT COUSUMER DISPUTES REDRESSAL COMMISSION COIMBATORE

E.A.No.54 OF2024
in
C.C.No.461 OF2010

P. Sathyanarayanan - Petitioner/Complainant

-Vs-

P. Murugesan - Respondent No.2/Opposite Party No.2

COUNTER STATEMENT FILED BY 2ND RESPONDENT

1. The petition is false, frivolous and unsustainable in law and on facts of the case.

2. The petitioner is put to strict proof of all the allegations except those that are specifically admitted herein.

3. The averments that this respondent is liable to pay the outstanding as mentioned in the execution petition and thereby the petitioner at present filed the present execution petition for attachment of property which belongs to this respondent etc., are stoutly and categorically denied as false.

4. The averments that the petition filed before this Hon'ble commission at the earliest was dismissed and as against which she preferred appeal before Hon'ble State Commission which was allowed as early on 17.07.2014 and at present this petition is filed for its execution nearly after 10 years etc are not admitted by this respondent as correct.

5. This respondent submits that this Hon'ble commission has no jurisdiction to execute the award passed by the Hon'ble State Commission since financial transaction does not come within the purview of The Consumer Protection Act as per present settled position of law. As such this petition is liable to be dismissed for want of jurisdiction.

6. This respondent further submits that already this issue was subject matter of civil suits that is pending between both parties and after a period of 10 long years, this

execution petition is filed which is purely barred by limitation.

7. Without prejudice, this respondent submits that the petitioner and her family members are tenant under him in the premises bearing D.No.850B Part, Rangae Gounder Street, Coimbatore and there were also civil suits pending at that time and in the meanwhile, the petitioner after getting the awards from the State Commission agreed to get the property under his occupation in lieu of the award amount in above appeals. Since the petitioner agreed to get the premises under his occupation as tenant by getting it registered and thereby to adjust the award amount, the respondent herein did not proceed further with all his earlier suits and let it on dismissal for default. Thus, with such understanding, the petitioner and respondent both kept quiet for all these years. Besides, this respondent never ever received any rent from her for the past 10 years. Thus, the petitioner having enjoyed the benefits now all of a sudden filed this execution petition. This respondent submits that he is not liable to pay any sum to petitioner. So also, the valuable property of this respondent is under occupation of petitioner as tenant which she agreed to get it registered his favour. However, by suppressing all, these the present petition is filed and thereby, the petitioner is estopped from filing this petition. This respondent more particularly submits that he did not proceed with the suit in OS No.5/2009, OS No.644/2009 and RCOP No.274/2009 in view of the aforesaid arrangement that took place between them. However, now by suppressing all these at present, this Execution Petition is filed which is against the agreed term. This respondent hereby reserves a right to file a detailed counter statement by collecting necessary documents from the Hon'ble State Commission and also details of the proceedings that were pending for a long time between both parties. Hence, without prejudice to the same, this counter is filed by reserving right to put forth further contentions by denying the claim of petitioner herein. Furthermore, the petitioner herein does not come under the ambit of consumer with regards to the dispute herein.

Therefore, it is prayed that this Hon'ble court may be pleased to dismiss the petition with costs and render justice.

ADVOCATE FOR 2ndRESPONDENT **2ndRESPONDENT**

VERIFICATION

I, the 2nd respondent above named do hereby declare that the facts stated above are true and correct to the best of my knowledge and I signed the same at Coimbatore on

2nd RESPONDENT

BEFORE THE DISTRICT CONSUMER DISPUTES REDRESSAL COMMISSION OF COIMBATORE

E.A.No.54 OF2024
in
C.C.No.461 OF2010

P. Sathyanarayanan - Petitioner/Complainant

-Vs-

P. Murugesan - Respondent No.2/Opposite Party No.2

COUNTER STATEMENT FILED BY 2ND RESPONDENT

Pre On : 11.03.2025

ADDRESS FOR SERVICE:

S.Chandrasekaran, M.A., B.L., DLL., (MS.595/1986)
C.Jaiy Chandhar, B.A., LLB., (Hons) (MS.1658/2020)
Advocates
85/12, 3rd Floor, Cherran Apartments,
Govt.Arts College Road,
Coimbatore – 641 018.
Off: 0422-2200337

BEFORE THE DISTRICT COUSUMER DISPUTES REDRESSAL COMMISSION COIMBATORE

E.A.No.55 OF 2024
in
C.C.No.465 OF2010

M/s Namagiri Stores
Rep by its proprietor P. Sathyanarayanan, - Petitioner/Complainant

-Vs-

P. Murugesan - Respondent No.2/Opposite party No.2

COUNTER STATEMENT FILED BY 2ND RESPONDENT

1. The petition is false, frivolous and unsustainable in law and on facts of the case.

2. The petitioner is put to strict proof of all the allegations except those that are specifically admitted herein.

3. The averments that this respondent is liable to pay the outstanding as mentioned in the execution petition and thereby the petitioner at present filed the present execution petition for attachment of property which belongs to this respondent etc., are stoutly and categorically denied as false.

4. The averments that the petition filed before this Hon'ble commission at the earliest was dismissed and as against which she preferred appeal before Hon'ble State Commission which was allowed as early on 17.07.2014 and at present this petition is filed for its execution nearly after 10 years etc are not admitted by this respondent as correct.

5. This respondent submits that this Hon'ble commission has no jurisdiction to execute the award passed by the Hon'ble State Commission since financial transaction does not come within the purview of The Consumer Protection Act as per present settled position of law. As such this petition is liable to be dismissed for want of jurisdiction.

6. This respondent further submits that already this issue was subject matter of civil suits that is pending between both parties and after a period of 10 long years, this

execution petition is filed which is purely barred by limitation.

7. Without prejudice, this respondent submits that the petitioner and her family members are tenant under him in the premises bearing D.No.850B Part, Rangae Gounder Street, Coimbatore and there were also civil suits pending at that time and in the meanwhile, the petitioner after getting the awards from the State Commission agreed to get the property under his occupation in lieu of the award amount in above appeals. Since the petitioner agreed to get the premises under his occupation as tenant by getting it registered and thereby to adjust the award amount, the respondent herein did not proceed further with all his earlier suits and let it on dismissal for default. Thus, with such understanding, the petitioner and respondent both kept quiet for all these years. Besides, this respondent never ever received any rent from her for the past 10 years. Thus, the petitioner having enjoyed the benefits now all of a sudden filed this execution petition. This respondent submits that he is not liable to pay any sum to petitioner. So also, the valuable property of this respondent is under occupation of petitioner as tenant which she agreed to get it registered his favour. However, by suppressing all, these the present petition is filed and thereby, the petitioner is estopped from filing this petition. This respondent more particularly submits that he did not proceed with the suit in OS No.5/2009, OS No.644/2009 and RCOP No.274/2009 in view of the aforesaid arrangement that took place between them. However, now by suppressing all these at present, this Execution Petition is filed which is against the agreed term. This respondent hereby reserves a right to file a detailed counter statement by collecting necessary documents from the Hon'ble State Commission and also details of the proceedings that were pending for a long time between both parties. Hence, without prejudice to the same, this counter is filed by reserving right to put forth further contentions by denying the claim of petitioner herein. Furthermore, the petitioner herein does not come under the ambit of consumer with regards to the dispute herein.

Therefore, it is prayed that this Hon'ble court may be pleased to dismiss the petition with costs and render justice.

ADVOCATE FOR 2ndRESPONDENT **2ndRESPONDENT**

VERIFICATION

I, the 2nd respondent above named do hereby declare that the facts stated above are true and correct to the best of my knowledge and I signed the same at Coimbatore on

2nd RESPONDENT

BEFORE THE DISTRICT CONSUMER DISPUTES REDRESSAL COMMISSION OF COIMBATORE

E.A.No.55 OF2024
in
C.C.No.465 OF2010

M/s Namagiri Stores
Rep by its proprietor P. Sathyanarayanan,
- Petitioner/Complainant

-Vs-

P. Murugesan -
Respondent No.2/Opposite party No.2

COUNTER STATEMENT FILED BY 2ND RESPONDENT

Pre On : 11.03.2025

ADDRESS FOR SERVICE:

S.Chandrasekaran, M.A., B.L., DLL., (MS.595/1986)
C.Jaiy Chandhar, B.A., LLB., (Hons) (MS.1658/2020)
Advocates
85/12, 3rd Floor, Cherran Apartments,
Govt.Arts College Road,
Coimbatore – 641 018.
Off: 0422-2200337

BEFORE THE DISTRICT COUSUMER DISPUTES REDRESSAL COMMISSION COIMBATORE

E.A.No.56 OF 2024
in
C.C.No.466 OF 2010

M/s Namagiri Stores
Rep by its proprietor P. Sathyanarayanan, - Petitioner/Complainant

-Vs-

P. Murugesan - Respondent No.2/Opposite party No.2

COUNTER STATEMENT FILED BY 2ND RESPONDENT

1. The petition is false, frivolous and unsustainable in law and on facts of the case.

2. The petitioner is put to strict proof of all the allegations except those that are specifically admitted herein.

3. The averments that this respondent is liable to pay the outstanding as mentioned in the execution petition and thereby the petitioner at present filed the present execution petition for attachment of property which belongs to this respondent etc., are stoutly and categorically denied as false.

4. The averments that the petition filed before this Hon'ble commission at the earliest was dismissed and as against which she preferred appeal before Hon'ble State Commission which was allowed as early on 17.07.2014 and at present this petition is filed for its execution nearly after 10 years etc are not admitted by this respondent as correct.

5. This respondent submits that this Hon'ble commission has no jurisdiction to execute the award passed by the Hon'ble State Commission since financial transaction does not come within the purview of The Consumer Protection Act as per present settled position of law. As such this petition is liable to be dismissed for want of jurisdiction.

6. This respondent further submits that already this issue was subject matter of civil suits that is pending between both parties and after a period of 10 long years, this

execution petition is filed which is purely barred by limitation.

7. Without prejudice, this respondent submits that the petitioner and her family members are tenant under him in the premises bearing D.No.850B Part, Rangae Gounder Street, Coimbatore and there were also civil suits pending at that time and in the meanwhile, the petitioner after getting the awards from the State Commission agreed to get the property under his occupation in lieu of the award amount in above appeals. Since the petitioner agreed to get the premises under his occupation as tenant by getting it registered and thereby to adjust the award amount, the respondent herein did not proceed further with all his earlier suits and let it on dismissal for default. Thus, with such understanding, the petitioner and respondent both kept quiet for all these years. Besides, this respondent never ever received any rent from her for the past 10 years. Thus, the petitioner having enjoyed the benefits now all of a sudden filed this execution petition. This respondent submits that he is not liable to pay any sum to petitioner. So also, the valuable property of this respondent is under occupation of petitioner as tenant which she agreed to get it registered his favour. However, by suppressing all, these the present petition is filed and thereby, the petitioner is estopped from filing this petition. This respondent more particularly submits that he did not proceed with the suit in OS No.5/2009, OS No.644/2009 and RCOP No.274/2009 in view of the aforesaid arrangement that took place between them. However, now by suppressing all these at present, this Execution Petition is filed which is against the agreed term. This respondent hereby reserves a right to file a detailed counter statement by collecting necessary documents from the Hon'ble State Commission and also details of the proceedings that were pending for a long time between both parties. Hence, without prejudice to the same, this counter is filed by reserving right to put forth further contentions by denying the claim of petitioner herein. Furthermore, the petitioner herein does not come under the ambit of consumer with regards to the dispute herein.

Therefore, it is prayed that this Hon'ble court may be pleased to dismiss the petition with costs and render justice.

ADVOCATE FOR 2ndRESPONDENT **2ndRESPONDENT**

VERIFICATION

I, the 2nd respondent above named do hereby declare that the facts stated above are true and correct to the best of my knowledge and I signed the same at Coimbatore on

2nd RESPONDENT

BEFORE THE DISTRICT CONSUMER DISPUTES REDRESSAL COMMISSION OF COIMBATORE

E.A.No.56 OF2024
in
C.C.No.466 OF2010

M/s Namagiri Stores
Rep by its proprietor P. Sathyanarayanan,
- Petitioner/Complainant

-Vs-

P. Murugesan
- Respondent No.2/Opposite party No.2

COUNTER STATEMENT FILED BY 2ND RESPONDENT

Pre On : 11.03.2025

ADDRESS FOR SERVICE:

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